

Court No. - 34

Case :- WRIT - C No. - 6648 of 2019

Petitioner :- Raju Kumar Gupta

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Beerendra Singh Pal, Manoj Kumar Keshari

Counsel for Respondent :- C.S.C., Mahboob Ahmad

Hon'ble Sudhir Agarwal, J.

Hon'ble Rajendra Kumar-IV, J.

1. Heard Sri Manoj Kumar Keshari, learned Counsel for petitioner, learned Standing Counsel for State-respondents and Sri Ravi Yadav, Advocate holding brief of Sri Mahboob Ahmad, learned Counsel for respondent 3.

2. Petitioner has filed this writ petition under Article 226 of the Constitution of India challenging impugned recovery citation dated 24.01.2019 issued by respondent 2.

3. Learned Counsel for petitioner submits that assessment has been made under Section 126 of Indian Electricity Act, 2003 (hereinafter referred to as "Act, 2003") by Executive Engineer concerned whereafter recovery certificate was issued but assessment has not been done in accordance with the procedure laid down under Para 6.8 of U.P. Electricity Supply Code, 2005 (hereinafter referred to as "Code, 2005").

4. When questioned, Counsel appearing for respondent 3 did not dispute that assessment has not been made in accordance with procedure laid down under Para 6.8 of Code, 2005 read with Division Bench judgement in the case of ***Ashok Kumar and others versus State of U.P. and others, 2008 (6) ADJ 660.***

5. In view of above and stands taken by learned Counsel for respondents, the writ petition is allowed.

6. The recovery citation dated 24.01.2019 and assessment order issued by respondent 3 are hereby set aside.

7. However, Competent Assessment Authority shall be at liberty to pass a fresh order of assessment in accordance with law.

Order Date :- 28.2.2019

I.A.Siddiqui